



CHAPTER cxxxii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Bethesda Darwen Dewsbury Llanelly and the Thurrock Grays and Tilbury Joint Sewerage District. A.D. 1912
[7th August 1912.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1912. Short title.

A.D. 1912.

S C H E D U L E.

URBAN DISTRICT OF BETHESDA.

*Bethesda
Order.*

*Provisional Order for altering the Bethesda Improvement
Act 1854 and certain Confirming Acts.*

To the Urban District Council of Bethesda ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Bethesda (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Bethesda (herein-after referred to as "the District") ;

And whereas there are in force in the District the unrepealed provisions of the Bethesda Improvement Act 1854 (herein-after referred to as "the Local Act") as altered by a Provisional Order of the Local Government Board dated the Tenth day of May One thousand eight hundred and eighty which was confirmed by the Local Government Board's Provisional Orders Confirmation (Bethesda &c.) Act 1880 a Provisional Order of the Local Government Board dated the Seventeenth day of May One thousand eight hundred and eighty-two (herein-after referred to as "the Order of 1882") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1882 and a Provisional Order of the Local Government Board dated the Second day of March One thousand eight hundred and ninety-two (herein-after referred to as "the Order of 1892") which was confirmed by the Local Government Board's Provisional Orders Confirmation Act 1892 (all which Orders and Confirmation Acts are herein-after respectively referred to as "the Orders" and "the Confirming Acts") and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

And whereas the Council as successors of the Bethesda Improvement Commissioners are authorised to supply water within the limits (herein-after referred to as "the limits of supply") defined by Section 4 of the Local Act ;

And whereas by virtue of Article II. of the Order of 1892 and subject as therein provided the Council at the request of the owner

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

or occupier of any dwelling-house or part of a dwelling-house entitled under the Local Act as altered by the Order of 1882 to demand a supply of water for domestic purposes are required to furnish to such owner or occupier a sufficient supply of water for domestic purposes at rates not exceeding the rates specified in the said Article;

A.D. 1912.

*Bethesda
Order*

And whereas the expenditure incurred by the Council in respect of their water undertaking after deducting the sums raised in pursuance of powers of borrowing conferred for the purposes of that undertaking has exceeded the revenue from the undertaking and the accumulated deficiency on the revenue account of the water undertaking amounted at the Thirty-first day of March One thousand nine hundred and twelve to the sum of one thousand five hundred and seventy-three pounds (herein-after referred to as "the existing water debt");

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act and the Confirming Acts so far as they relate to the Orders in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Acts so far as they relate to the Orders shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art I.—(1) The Local Government Board on the application of the Council may from time to time fix by Order the rates and charges for a supply of water for domestic purposes within the limits of supply.

Power of
Local Go-
vernment
Board to fix
rates &c. for
a supply of
water for
domestic use.

(2) The Council shall as soon as practicable after an Order is made in pursuance of subdivision (1) of this Article cause the Order to be published in two successive weeks in one or more local newspapers circulating in the limits of supply and the Order shall come into operation on and after the quarter day next following the date of the last of the said publications.

Art. II. On and after the date on which any Order made in pursuance of subdivision (1) of Article I. of this Order comes into operation Article II. of the Order of 1892 shall have effect as if—

Alteration of
Order of 1892
on operation
of new water
rates and
charges.

(a) for the rates specified in that Article there were substituted the rates and charges fixed by the Order made as aforesaid; and

(b) such other modifications were made in the said Article as are necessary to render the Article applicable to any premises rates or charges specified in the said Order.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Bethesda
Order.*

Provision
for discharge
of existing
water debt.

Art. III. The Council shall discharge the existing water debt within a period of ten years from the Thirty-first day of March One thousand nine hundred and twelve and for that purpose the Council shall provide in the general district rates to be made and levied by them in each year during the said period for raising not less than one hundred and eighty pounds annually to be applied each year in the reduction of the existing water debt until the whole of the said debt is discharged.

Inquiries and
expenses.

Art. IV.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary with reference to any of the purposes of this Order and the inspectors of the Board shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health Act 1875.

(2) Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Act or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

Short title.

Art. V. This Order may be cited as the Bethesda Order 1912.

Given under the Seal of Office of the Local Government Board
this Fourteenth day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

BOROUGH OF DARWEN.

*Darwen
Order.*

*Provisional Order for partially repealing and altering the
Darwen Corporation Act 1899.*

To the Mayor Aldermen and Burgesses of the Borough of
Darwen ; —

And to all others whom it may concern.

WHEREAS the Borough of Darwen (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

within the meaning of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Darwen Corporation Act 1899 (herein-after referred to as "the Local Act") as altered by a Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order;

A.D. 1912.
Darwen
Order.
 62 & 63 Vict.
 c. ccxxiv.

And whereas by Section 98 of the Local Act notwithstanding anything in the Public Health Acts the Corporation are empowered subject as therein mentioned to require new buildings to be provided with proper and sufficient waterclosets or waste-water closets or with proper and sufficient earth-closets or privies and ashpits;

And whereas by Section 99 of the Local Act and subject as therein mentioned the Corporation are empowered to require any existing building which has not sufficient closet accommodation provided thereat or in connexion therewith to be provided with proper and sufficient waterclosets or waste-water closets and to require any existing closet accommodation (other than a watercloset or a waste-water closet) provided at or in connexion with a building to be altered so as to be converted into a watercloset or waste-water closet which shall comply with the byelaws for the time being in force in the Borough and shall communicate with a sewer and the Corporation are empowered to contribute towards or may be required to bear in part the expenses incurred in making alterations of closet accommodation in pursuance of the said Section;

And whereas by the Local Act provision is made as to the periods within which moneys borrowed by the Corporation under that Act should be repaid and as to the mode of repayment of the said moneys;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal and alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
 c. 55.

Art. I. Section 98 and Section 99 of the Local Act shall be repealed and the Local Act shall be read as if the following sections were substituted for Section 98 and Section 99:—

Alteration
 of Local Act.

"98.—(1) Notwithstanding anything in the Local Acts and
 " the Public Health Acts the Corporation may on the erection
 " of any new building when a sewer and water supply

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Darwen
Order.*

“ sufficient for the purpose are reasonably available by written
“ notice require that such new building shall be provided with
“ one or more proper and sufficient waterclosets according as
“ circumstances may require.

“ (2) On the erection of any new building the Corporation
“ may when a sewer and water supply sufficient for a water-
“ closet are not reasonably available by written notice require
“ one or more proper and sufficient earth-closets or privies and
“ ashpits to be provided at or in connexion with such building.

“ (3) Any person offending against any requirement of the
“ Corporation under this section shall be liable to a penalty not
“ exceeding five pounds and to a daily penalty not exceeding
“ forty shillings.

“ 99—(1) If on the report of the surveyor or of the
“ medical officer or inspector of nuisances for the borough
“ the Corporation are satisfied that any house has not sufficient
“ closet accommodation provided thereat or in connexion
“ therewith the Corporation (notwithstanding anything in the
“ recited Acts and the Public Health Acts) may when a
“ sewer and water supply sufficient for the purpose are reasonably
“ available by written notice to the owner or owners require
“ that such building shall be provided with one or more
“ proper and sufficient waterclosets according as circumstances
“ may require.

“ (2) When a sewer and water supply sufficient for the
“ purpose are reasonably available the Corporation may by
“ written notice to the owner or owners of any building require
“ any existing closet accommodation (other than a watercloset)
“ provided at or in connexion with such building to be altered
“ so as to be converted into a watercloset which shall com-
“ municate with a sewer and they may also require a separate
“ receptacle for ashes and house refuse to be provided at or in
“ connexion with such building.

“ (3) If the owner or owners of any such building fail in
“ any respect to comply with a notice from the Corporation
“ under this section the Corporation may at the expiration of a
“ time to be specified in the notice (not being less than fourteen
“ days after the service of the notice) do the work specified
“ in such notice and may recover in a summary manner from
“ the owner or owners the expenses incurred by the Corporation
“ in so doing:

“ Provided that if in any case of conversion as aforesaid the
“ alteration shall be required in respect of any existing closet

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

“ accommodation which prior to the service of the notice shall
 “ have been on the system known as the tub and pail system
 “ or the ashpit system known as the No. 2 system or on any
 “ other system which shall not have been certified by the
 “ medical officer of health to be insufficient for the necessities
 “ of the inhabitants of the building or to be in such state
 “ as to create a nuisance or to be injurious to health then
 “ one half of the expenses so incurred by the Corporation as
 “ aforesaid shall be borne by them: ”

A.D. 1912.
 —
Darwen
Order.

“ Provided also that if in any case of conversion as aforesaid
 “ the alteration shall be required in respect of any existing
 “ waste-water closet the whole of the expenses so incurred by
 “ the Corporation as aforesaid shall be borne by them.

“ (4) The Corporation may contribute towards the expenses
 “ incurred in providing or making any alteration of any closet
 “ accommodation in pursuance of this section in any case in
 “ which they may not be required to bear any part of such
 “ expenses.

“ (5) The notice under the provisions of this section shall
 “ state the provisions of this section.”

Art. II. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the district fund and general district rate of the Borough such sums as may from time to time be necessary for the purposes of the section substituted by this Order for Section 99 of the Local Act.

Borrowing
powers for
certain
purposes of
Local Act.

Art. III. The moneys borrowed under Article II. of this Order shall be repaid within such period not exceeding twenty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Local Loans Act 1875 of Section 141 of the Local Act as applied by this Order and of Article V. of this Order.

Period for
repayment of
borrowed
moneys.

Art. IV. The provisions of Sections 137 to 141 and 144 to 147 both inclusive of the Local Act shall apply as if the said Sections were herein re-enacted and made applicable to the moneys borrowed under Article II. of this Order and otherwise to the purposes of this Order and the provisions of Section 165 of the Local Act shall apply to any local inquiry held by the Local Government Board with reference to any of the purposes of this Order.

Application
of Local Act
provisions to
borrowing
under and
for purposes
of this Order.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Darwen
Order.*

Power to
re-borrow.

Art. V.—(1) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Short title.

Art. VI. This Order may be cited as the Darwen Order 1912.

Given under the Seal of Office of the Local Government Board
this Eleventh day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF DEWSBURY.

A.D. 1912.

*Provisional Order for altering the Dewsbury and Batley
Corporations (Gas) Act 1873 and the Dewsbury Improvement
Act 1884.*

*Dewsbury
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Dewsbury;—

And to all others whom it may concern.

WHEREAS the Borough of Dewsbury (herein-after referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the Council (herein-after referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed
provisions of the Dewsbury and Batley Corporations (Gas) Act 1873
and the Dewsbury Improvement Act 1884 (each of which Acts is
herein-after referred to as the Act of the year in which it was passed
and which Acts are herein-after together referred to as “the Local
Acts”) as altered by the Dewsbury (Extension) Order 1909 (herein-
after referred to as “the Order of 1909”) which was confirmed by
the Local Government Board's Provisional Orders Confirmation (No. 6)
Act 1909 and by certain other Provisional Orders duly confirmed by
Parliament which do not affect the subject-matter of this Order;

36 & 37 Vict.
c. clix.
47 & 48 Vict.
c. clxxx.

9 Edw. 7.
c. clxii.

And whereas by virtue of the Act of 1873 as altered by the Order
of 1909 the Corporation are empowered to manufacture gas and to
supply gas within part of the Borough the limits of the Corporation
for the supply of gas (herein-after referred to as “the gas limits”)
being defined by Section 23 of the Act of 1873 as altered by the
Order of 1909;

And whereas by Section 7 of the Act of 1884 it is enacted that
the Corporation may manufacture purchase sell or let for hire water-
fittings and also gas-stoves gas-engines and fittings necessary or con-
venient for the supply or consumption of gas for the purpose of light
heat or motive power;

And whereas by the Act of 1873 the Corporation were empowered
to borrow for the purposes of their gas undertaking sums amounting
to two hundred and thirty thousand pounds and the Corporation have
borrowed the whole of that sum;

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Dewsbury
Order.*

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say:—

Authorising
Corporation
to require an
antifluctua-
tor to be used
for control-
ling supply of
gas to a gas
engine.

Art. I.—(1) The Corporation may by notice in writing require a consumer of gas supplied by the Corporation and used for the working of an engine to fix and use an antifluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an antifluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an antifluctuator which is not in proper order or repair:

If the consumer after any such notice as aforesaid fails to fix and use an antifluctuator or to keep an antifluctuator in proper order and repair or to repair renew or replace an antifluctuator which is not in proper order and repair the Corporation may cease to supply him with gas.

(2) The Corporation may at all reasonable times demand and shall thereupon have access to any antifluctuator fixed upon any premises to which gas is supplied by the Corporation and for the purpose of ascertaining whether the antifluctuator is in proper order or repair may take off remove test inspect and replace the antifluctuator such taking off removing testing and replacing to be done at the expense of the Corporation if the antifluctuator be found in proper order but otherwise at the expense of the consumer.

(3) For the purposes of this Article an “antifluctuator” means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Gas con-
sumers to
give notice to
Corporation
before
removing.

Art. II.—(1) At least twenty-four hours' notice shall be given to the Corporation by every gas consumer either personally at the gas office for the time being of the Corporation or in writing before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

(2) Notice of the effect of this requirement shall be endorsed upon every demand note for gas charges payable to the Corporation.

*Dewsbury
Order.*

Art. III. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the gas office for the time being of the Corporation or be given by the consumer personally at the said office.

Notice of discontinuance.

Art. IV. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas charges and meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other premises.

Art. V.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of error in defective meters.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Corporation.

Art. VI. Section 7 of the Act of 1884 shall have effect as if the word "manufacture" were omitted therefrom and as if there were added thereto the following paragraph that is to say:—

Amendment of Act of 1884.

" Any such water fittings gas-stoves gas-engines or fittings as
 " are let for hire under this section shall not be subject to distress
 " or to the landlord's remedy for rent or be liable to be taken in
 " execution under process of any court or any proceedings in bank-
 " ruptcy against the persons in whose possession the same may be
 " Provided that such water fittings gas-stoves gas-engines or fittings
 " are marked or impressed with a sufficient mark or brand indicating
 " the Corporation as the actual owners thereof."

Exemption of Corporation fittings from distress.

Art. VII.—(1) For the purpose of the supply of gas by the Corporation on the application of the owner or occupier of premises within the gas limits which abut on or are being erected in any street laid out but not dedicated to public use the provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes shall apply to such streets as if Section 7 of that Act were excepted from incorporation with the Act of 1873.

Power to supply gas to premises in private streets.

(2) Section 308 of the Public Health Act 1875 shall apply in respect of any damage sustained by any person by reason of the

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Dewsbury
Order.*

No penalty in
case of un-
avoidable
cause.

exercise by the Corporation of the powers of this Article as if the powers of this Article were powers of the said Act.

Art. VIII. No penalty shall be incurred by the Corporation for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that the insufficiency defect or excess was produced by an unavoidable cause or accident.

Supply of gas
in bulk with-
out district.

Art. IX. The Corporation may from time to time enter into and carry into effect and alter or rescind contracts and agreements with respect to the supply of gas in bulk beyond the gas limits to any other authority or company authorised to supply gas and any such contract or agreement may be subject to such terms and conditions and may be for such a period not exceeding in any case seven years from the making of the contract or agreement as may from time to time be agreed upon and the Corporation for the purpose of carrying into effect any contract or agreement in pursuance of this Article may exercise the powers of the Gasworks Clauses Act 1847 with respect to the breaking up of streets :

Provided that nothing herein contained shall be construed as conferring any powers on the Corporation in relation to the laying down or placing of any pipe or the breaking up of any road or street or the execution of any work beyond the gas limits.

Additional
borrowing
powers for
gas under-
taking.

Art. X. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their gas undertaking of the borough fund and borough rate of the Borough and of the district fund and general district rate of the Borough or upon any of those securities either together or separately such further moneys not exceeding in the whole the sum of fifty thousand pounds as may from time to time be required for the purposes of their gas undertaking.

Local Loans
Act and cer-
tain provi-
sions of Pub-
lic Health
Act made
applicable.

Art. XI. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment of
borrowed
money.

Art. XII. The moneys borrowed under Article X. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

Art. XIII.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

A.D. 1912.
Dewsbury
Order.
 Mode of
 repayment.

(2) Subject to the provisions of Article XIV. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912. the rate per centum per annum on which the annual payments to the
Dewsbury sinking fund are based.
Order.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. XIV.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct. A.D. 1912.
Dewsbury
Order.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine. Surplus of
sinking fund.

Art. XV.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
re-borrow.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. XVI. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine. Application
of borrowed
moneys.

Art. XVII.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Receiver.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912. Order may enforce the payment of arrears of interest or of principal
or of principal and interest by the appointment of a receiver.

*Dewsbury
Order.*

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment
of debt.

Art. XVIII.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1912.

Dewsbury
Order.

Art. XIX. In exercising the powers of Articles VII. and IX. of this Order the following provisions for the protection of the Lancashire and Yorkshire Railway Company and the Great Northern Railway Company (each of whom is in this Article referred to as "the Railway Company") shall unless otherwise agreed between the Corporation and the Railway Company be observed and have effect (that is to say):—

For pro-
tection of
Lancashire
and York-
shire and
Great North-
ern Railway
Companies.

- (1) Subject to the provisions of this Article whenever the Corporation shall require to lay down repair take up alter re-lay renew test or inspect any mains pipes culverts or apparatus in any street upon across or under any railway for the time being belonging to or worked by the Railway Company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto respectively the Railway Company (in addition to any other person under whose control or management the street proposed to be broken up may be) shall for the purpose of the application to the said Articles VII. and IX. of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes be deemed to be a person having the control or management of such street:
- (2) Section 8 of the Gasworks Clauses Act 1847 shall be read and have effect as if the period of ten clear days were inserted therein instead of the period of three clear days in the said section mentioned and the notice therein mentioned shall be given to the engineer of the Railway Company and shall be accompanied by sufficient plans:
- (3) The Corporation shall repay to the Railway Company the reasonable expense of any temporary works or watching which may be necessary to provide for the protection of any railway for the time being belonging to or worked by the Railway Company or the traffic thereon during the carrying out of any works under the provisions of Articles VII. and IX. of this Order:
- (4) If by or in consequence of the execution or maintenance of such works any injury shall arise to any such railway or to any station or works connected therewith or any

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Dewsbury
Order.*

interruption of traffic be caused the Corporation shall make full satisfaction in respect thereof to the Railway Company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided :

- (5) Any difference which may arise between the Corporation and the Railway Company under the provisions of this Article shall unless otherwise agreed be settled by the arbitration of a single arbitrator being an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers at the request of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Inquiries and
expenses.

Art. XX. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short title.

Art. XXI. This Order may be cited as the Dewsbury Order 1912.

Given under the Seal of Office of the Local Government Board
this Fourteenth day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

URBAN DISTRICT OF LLANELLY.

*Llanelly
Order.*

*Provisional Order for partially repealing and altering the
Llanelly Local Board Act 1888.*

To the Urban District Council of Llanelly ; —

And to all others whom it may concern.

51 & 52 Vict.
c. clxxv.

WHEREAS the Urban District Council of Llanelly (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Llanelly (herein-after referred to as "the District") and the unrepealed provisions of the Llanelly Local Board Act 1888 (herein-after referred to as "the Local Act") are in force in the District ;

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

And whereas by Sections 6 to 13 of the Local Act provision was made as therein mentioned with respect to the sale with the previous consent of the Charity Commissioners for England and Wales under their seal of the lands or any part of the lands in the Local Act and in this Order referred to as "the Public Estates" and for the application of the proceeds of any such sale;

A.D. 1912.

Llanelly
Order.

And whereas by Section 17 of the Local Act and subject as therein provided it was enacted that no part of any building or structure whether the same should be an addition to or in the place of any existing building or not should after the passing of that Act be erected over any part of the River Lliedi;

And whereas by Section 22 of the Local Act the Local Board who were the predecessors of the Council were empowered to erect and furnish a new town hall and public hall with requisite offices and conveniences and to appropriate and use as the site of such new town hall and public hall offices and conveniences one of the pieces of land mentioned in that section including the land mentioned in the paragraph numbered (1) in that section and described as any piece of land not exceeding two acres in extent which after the passing of the Local Act the said Local Board might by agreement acquire for the purpose of such site and by the said Section 22 it was provided that the said Local Board should not expend in respect of the acquisition of a site for and of erecting and furnishing the new town hall and public hall offices and conveniences more than twenty-five thousand pounds nor more than should be approved by the Local Government Board and by Section 26 of the Local Act the said Local Board were empowered to borrow moneys for the purpose of defraying the expenditure so incurred;

And whereas the Council or their predecessors have erected a town hall on one of the pieces of land mentioned in the said Section 22 not being a piece of land mentioned in the paragraph numbered (1) in that section but have not erected a public hall;

And whereas by Section 76 of the Local Act provision is made with respect to the height of the habitable rooms and attics of every new building in the District;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the

38 & 39 Vict.
c. 55.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912. Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

*Llanelly
Order.*

Appropriation of public estates for housing purposes.

Art. I.—(1) The Council may with the previous consent of the Charity Commissioners for England and Wales under their seal from time to time appropriate for the purposes of Part III. of the Housing of the Working Classes Act 1890 any portion of the Public Estates subject to the payment of such annual sum or other consideration and subject to such conditions as the said Commissioners may prescribe.

(2) The said Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for altering any provisions of any Local Act passed or to be passed which affect the Public Estates as if those provisions had been made by the founder in the case of a charity having a founder.

Culverts over River Lliedi.

Art. II.—(1) Section 17 of the Local Act shall have effect and shall be deemed always to have had effect as if it provided that nothing therein contained should apply to any arch or culvert constructed or proposed to be constructed over any part of the bed of the River Lliedi situate within the District either by the Council by agreement with the owner or owners of that part of the river bed and of the land immediately adjoining that part of the river bed or by the said owner or owners in accordance with plans submitted to and approved by the Council.

(2) The provisions of Section 135 of the Local Act shall apply to any case in which the approval of the Council under subdivision (1) of this Article is withheld.

Site for public hall.

Art. III. Notwithstanding anything in Section 22 of the Local Act the Council may purchase by agreement as a site for the public hall and requisite offices and conveniences which they are authorised to erect and furnish under the said section any piece of land mentioned in the paragraph numbered (1) in that section or may with the approval of the Local Government Board appropriate for that purpose any land for the time being vested in them and the provisions of the Local Act with respect to expenditure under the said section and with respect to borrowing for the purpose of defraying that expenditure shall apply and have effect with respect to expenditure under that section as altered by this Order.

Byelaws with regard to height of rooms.

Art. IV.—(1) Notwithstanding anything in Section 76 of the Local Act the Council may forthwith make byelaws under and in accordance with the Public Health Act 1875 and any Act amending or extending that Act with respect to the height of rooms intended to be used for human habitation and the last-mentioned Acts shall accordingly apply to the byelaws made in pursuance of this Article.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

(2) From and after the date of the confirmation of any byelaws made and confirmed in pursuance of subdivision (1) of this Article so much of Section 76 of the Local Act as relates to the height of the habitable rooms and attics of new buildings shall be repealed.

A.D. 1912.

*Llanelly
Order.*

Repeal of provisions of Local Act as to height of rooms.

Short title.

Art. V. This Order may be cited as the Llanelly Order 1912.

Given under the Seal of Office of the Local Government Board
this Eleventh day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

THURROCK GRAYS AND TILBURY JOINT
SEWERAGE DISTRICT.

*Provisional Order for forming a United District under
Section 279 of the Public Health Act 1875.*

*Thurrock
Grays and
Tilbury
Order.*

To the Urban District Council of Grays Thurrock ;—

To the Urban District Council of Tilbury ;—

To the Rural District Council of Orsett ;—

And to all others whom it may concern.

WHEREAS in pursuance of an agreement dated the Twenty-second day of June One thousand eight hundred and ninety-three and made between the Local Board of Grays Thurrock who were the predecessors of the Urban District Council of Grays Thurrocks and the Orsett Rural Sanitary Authority who were the predecessors of the Rural District Council of Orsett the said Urban District Council or their predecessors have provided on the lands described in Schedule A to this Order works for the treatment and disposal of the sewage from the Urban District of Grays Thurrock and the contributory places of Chadwell Saint Mary's and Little Thurrock now or formerly in the Rural District of Orsett the effluent from which is discharged into the River Thames ;

And whereas the above-cited agreement as varied by an award dated the Twenty-fourth day of December One thousand eight hundred and ninety-eight and made upon an arbitration between the said Urban District Council and the said Rural District Council in pursuance of the provisions of the said agreement and by a further agreement dated the Twelfth day of July One thousand nine hundred and six and made between those Authorities prescribed the payments to be made from time to time by each of the said Authorities towards the cost of carrying on the works provided as aforesaid ;

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Thurrock
Grays and
Tilbury
Order.*

And whereas application has been made to the Local Government Board to form the said Urban District and so much of the said Rural District as comprised the contributory places of Chadwell Saint Mary's Little Thurrock Stifford and West Thurrock into a United District for the purposes of the construction and maintenance of a main sewer or sewers and the disposal of the sewage of the United District;

And whereas by the County of Essex (Tilbury Urban District) Confirmation Order 1912 the Parish of Chadwell Saint Mary's was constituted an Urban District to be known as the Urban District of Tilbury and by virtue of that order the property rights and liabilities of the said Rural District Council in respect of the said Parish passed to and were vested in the Urban District Council of Tilbury;

38 & 39 Vict.
c. 55.

And whereas the district councils named in column 2 of Schedule B to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows viz.,—

Definitions.

Art. I. In this Order—

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order;
- (2) The expression "the day of transfer" means the First day of April One thousand nine hundred and thirteen;
- (3) The expression "the Act" means the Public Health Act 1875;
- (4) The expression "Schedule A" means the Schedule A to this Order;
- (5) The expression "Schedule B" means the Schedule B to this Order;
- (6) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order;
- (7) The expression "Constituent District" means either of the Urban Districts named in column 1 of Schedule B or so much of the Rural District named in that column as comprises the contributory places also named in that column and the expression "Constituent Districts" means all the Constituent Districts;
- (8) The expression "Constituent Authority" means a district council named in column 2 of Schedule B and the expression "Constituent Authorities" means all the district councils so named;

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

- (9) The expression "Rural Council" means the Rural District Council of Orsett; A.D. 1912.
- (10) The expression "the existing sewage disposal works" means the sewage disposal works and outfall sewer into the River Thames provided by the Urban District Council of Grays Thurrock or their predecessors as aforesaid together with the water pipe referred to in Schedule A any other sewer or sewers in or under the lands described in Schedule A and all buildings machinery and plant used in connexion with those works sewers and water pipe. *Thurrock Grays and Tilbury Order.*
- Art. II. This Order shall come into operation from and after the appointed day. Commencement of Order.
- Art. III. The Constituent Districts shall be formed into a United District to be called the Thurrock Grays and Tilbury Joint Sewerage District for the purposes herein-after mentioned. Formation of district.
- Art. IV. The Joint Board shall consist of three ex-officio members and nine elective members and shall be called the Thurrock Grays and Tilbury Joint Sewerage Board. Constitution of governing body.
- Art. V. The ex-officio members shall be the persons described in column 3 of Schedule B and the elective members shall be elected by the Constituent Authorities. Ex-officio and elective members.
- Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of Schedule B and the said members shall be chosen by each Constituent Authority from among its own members. Number and qualification of elective members.
- Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board. Disqualifications for members.
56 & 57 Vict. c. 73.
- Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority. Date of first election.
- Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board and the names address and occupation of each person who will be an ex-officio member of the Joint Board. Notification to Local Government Board of members.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Thurrock
Grays and
Tilbury
Order.*

Tenure of
office of
members.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Supply of
vacancies.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Meetings.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

A.D. 1912.

*Thurrock
Grays and
Tilbury
Order.*

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk and other officer and servant shall be removable by the Joint Board at their pleasure.

Appointment
and remuneration of
officers.

Art. XIV.—(1) The purposes for which the United District is formed are as follows:—

Purposes for
which United
District is
formed.

- (a) The management maintenance and working on and after the day of transfer of the existing sewage disposal works to be transferred to the Joint Board by virtue of subdivision (3) of this Article:
- (b) The construction and maintenance of a main sewer which shall commence at the Royal Hotel Purfleet and shall terminate at a point east of the Tilbury Docks and of such other main sewer or main sewers and of such additional works as may be required for the reception and disposal of the sewage of the United District:
- (c) The acquisition of such additional lands as may from time to time be necessary and the provision construction maintenance execution erection and working of such additional works machinery and plant as may be required for conveying sewage from the Constituent Districts to the additional lands so acquired or to any other convenient place or places where the sewage may be purified and for purifying all such sewage by precipitation and filtration or otherwise in such manner that it may be discharged into any stream river or watercourse without breach of the Rivers Pollution Prevention Acts 1876 and 1893 or of any other provisions of the law.

39 & 40 Vict.
c. 75.
56 & 57 Vict.
c. 31.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Thurrock
Grays and
Tilbury
Order.*

(2) It shall be the duty of the Joint Board to do all such things as are authorised or required by this Order or by any enactment applied by this Order and to give full effect to the objects of this Order and to the purposes for which the United District is formed and if at the expiration of the period of two years from the appointed day the Joint Board have failed to perform their duty in giving effect to such of the purposes for which the United District is formed as are defined in paragraphs (b) and (c) of sub-division (1) of this Article they shall be deemed to be a local authority which has made default in providing their district with sufficient sewers within the meaning of Section 299 of the Act.

Transfer of
lands and
existing
sewage dis-
posal works
to Joint
Board.

(3) Until the day of transfer the existing sewage disposal works shall remain as heretofore under the control of the Constituent Authorities or any of them as the case may be and on and after that day the lands and rights described in Schedule A the existing sewage disposal works and all the rights duties and obligations and subject to the adjustment herein-after provided for all the liabilities of any of the Constituent Authorities in relation thereto shall be transferred to and be vested in the Joint Board and such of the provisions of the above-cited agreements and award as are inconsistent with any of the provisions of this Order or with any adjustment made thereunder shall cease to have effect.

(4) An adjustment of the liabilities to be transferred to the Joint Board under subdivision (3) of this Article shall be made between the Joint Board and any of the Constituent Authorities affected by agreement or failing agreement in the manner provided by Article XXIV. of this Order.

Powers rights
duties &c. of
Joint Board.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall for the purposes of this Order have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under those sections so far as the same are applicable viz.,—

38 & 39 Vict.
c. 55.

Of the Act:—

Sections 14 to 20 and 26 to 34 as to sewerage and drainage.

Section 153 as to removal of gas and water pipes.

Sections 173 and 174 relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

Sections 179 to 181 relating to arbitration.

A.D. 1912.

Section 192 (except as regards the inspector of nuisances)
 Sections 193 to 197 and Sections 205 and 206 (except so
 much of Section 206 as requires the publication in a local
 newspaper of the annual report) relating to officers provision
 of offices and conduct of business of local authorities.

*Thurrock
 Grays and
 Tilbury
 Order.*

Sections 245 247 (as amended by the District Auditors Act 1879)
 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 262 and 265 to
 267 and Section 269 as amended by the Summary Jurisdiction
 Act 1884 relating to legal proceedings.

Section 285 relating to the execution of works in adjoining
 districts and combination for execution of works.

Section 298 as to costs of Provisional Orders.

Sections 299 (except so far as relates to water supply) 300 301
 and 302 relating to defaulting local authorities.

Sections 305 to 309 including miscellaneous provisions.

Sections 327 328 and 329.

Of the Public Health (Officers) Act 1884 :—

47 & 48 Vict.
 c. 74.

Section 2.

Of the Public Health (Members and Officers) Act 1885 :—

48 & 49 Vict.
 c. 53.

Section 2.

Provided that nothing herein contained shall affect the powers of
 the Constituent Authorities with reference to sewers other than main
 sewers or to any other works required for the sewerage of either of
 the Constituent Districts.

Art. XVI.—(1) All the expenses incurred by the Joint Board shall
 be defrayed out of a common fund to which each Constituent Authority
 shall contribute in the proportions herein-after set forth. Expenses of
 Joint Board.

(2) Each Constituent Authority shall contribute to the common
 fund in respect of all the expenses incurred by the Joint Board except
 the expenses referred to in subdivision (3) of this Article in the pro-
 portion which the assessable value of their District bears to the total
 of the assessable values of the Constituent Districts.

(3) Until the date upon which a sewer or sewers of the Rural
 Council for the drainage of premises in the contributory places of
 Stifford and West Thurrock shall be connected with a sewer of the
 Joint Board each Constituent Authority shall contribute to the common
 fund in respect of such of the expenses of the Joint Board as are
 incurred in respect of the lands o works rights duties obligations and

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912. liabilities transferred to them by virtue of subdivision (3) of Article XIV. of this Order and in respect of the management maintenance and working of the existing sewage disposal works in the proportion which the assessable value of their District exclusive in the case of the Rural Council of those contributory places bears to the total of the assessable values of the Constituent Districts exclusive of those contributory places.

*Thurrock
Grays and
Tilbury
Order.*

(4) On and after the date referred to in subdivision (3) of this Article each Constituent Authority shall contribute to the common fund in respect of the expenses mentioned in that subdivision in the proportion specified in subdivision (2) of this Article.

(5) For the purposes of this Article the assessable value of a Constituent District means in the case of an Urban District the assessable value of the District for the purposes of a general district rate and in the case of a Rural District the assessable value of the contributory place in the Constituent District as ascertained by a special assessment in pursuance of Section 230 of the Act for the purposes of a separate rate leviable to defray special expenses or the aggregate assessable value of the several contributory places in the Constituent District as ascertained as aforesaid as the circumstances require.

(6) Every contribution of the Rural Council to the common fund shall be defrayed as special expenses within the meaning of the Act and in the case of a contribution in respect of the expenses of the Joint Board mentioned in subdivision (3) of this Article shall be chargeable upon the contributory place of Little Thurrock and in the case of a contribution in respect of any other expenses of the Joint Board shall be chargeable upon the several contributory places in the Constituent District and shall be apportioned between the said contributory places so that the amount of the expenses so apportioned to each contributory place shall be in the proportion which the assessable value of the contributory place as ascertained as aforesaid bears to the aggregate assessable value of the several contributory places as so ascertained.

(7) For the purposes of this Article the Joint Board shall keep a separate account of the expenses referred to in subdivision (3) of this Article.

Inspection of
accounts.

Art. XVII. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Auditor's
report and
abstract of
accounts.

Art. XVIII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

Art. XIX. The provisions of Section 305 of the Act shall apply for the purposes of this Order not only in the cases therein mentioned but also where the Joint Board desire to exercise the powers thereof for the purpose of discovering or ascertaining any communication with or opening into any of the sewers of the Joint Board or the flowing or passing of any matter into those sewers or into any drain channel or watercourse communicating therewith.

*Thurrock
Grays and
Tilbury
Order.*

Certain provisions of Public Health Act 1875 made applicable to Order.

Art. XX. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or the Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board, then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of Local Government Board to adapt provisions of Order on alterations of Constituent Districts.

Art. XXI. For the purposes of this Order any sewer transferred to the Joint Board and all sewers made by the Joint Board shall be under the control of the Joint Board but a Constituent Authority shall be entitled as of right to have communication from any of their sewers into any sewer so transferred or into the main sewer or sewers of the Joint Board subject to the following provisions:—

Communication from sewers of Constituent Authorities into those of Joint Board.

(1) The means of communication between the sewers of the Constituent Authority and those of the Joint Board shall in every case be wholly under the control of the Joint Board and any such communication made after the day of transfer shall be made by the Joint Board at the expense of the Constituent Authority and the Joint Board shall at their own cost be at liberty at any time to alter any such means of communication:

(2) After the day of transfer the Constituent Authority proposing to construct any new sewer for the purpose of bringing the sewage of their district or of any part thereof into any sewer under the control of the Joint Board by a new communication with any such last-mentioned sewer shall two months at least before they commence the construction of the means of communication send to the Joint Board plans and sections showing the proposed places of communication and the proposed level at those places of the intended new

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

*Thurrock
Grays and
Tilbury
Order.*

sewer and the place of communication and the level thereof of every such new sewer shall be such as shall be determined by the Joint Board and every difference respecting any such determination which may arise between the Constituent Authorities and the Joint Board shall be determinable in accordance with the provisions of Article XXIV. of this Order :

- (3) All existing sewers of each of the Constituent Authorities the contents of which shall be or shall be intended to be conveyed into the sewers or works of the Joint Board shall be kept and maintained by and at the cost of that Constituent Authority in good repair and condition and so as to prevent so far as practicable the admission thereto of surface water in excess of the quantity at the day of transfer admitted thereto :
- (4) All sewers constructed in the Constituent Districts after the day of transfer and intended to be used in connexion with the sewers or works of the Joint Board shall be constructed and thereafter maintained with such materials and in such manner as to exclude therefrom surface water so far as practicable The Joint Board may refuse to allow any sewer not so constructed or maintained to be or remain connected with their sewers or works and shall have power to do all things necessary to give effect to such a refusal.

Provision for
exclusion of
surface water
from sewers.

Art. XXII. The Constituent Authorities respectively shall at their own respective cost with all reasonable dispatch do all such things as shall be requisite and can lawfully and practicably be done by them for excluding surface water from the sewers in their Districts communicating or intended to communicate either directly or indirectly with the sewers or works of the Joint Board.

Agreement
between
Joint Board
and District
Councils
other than
Constituent
Authorities
as to com-
municating
with sewers
of Joint
Board.

Art. XXIII.—(1) For the purpose of enabling the Joint Board to dispose of the sewage of any county district other than one of the Constituent Districts the Joint Board may with the consent of the Local Government Board agree to allow the sewers of the council of any county district to communicate either directly or indirectly with the sewers vested in or under the control of the Joint Board or deliver sewage at the outfall of the Joint Board but any such agreement and communication shall be subject to the consent of the council through whose sewers any such indirect communication with the sewers of the Joint Board is to be effected.

(2) The conveyance and purification of any sewage admitted to the sewers or delivered at the outfall under any agreement made in

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxii.]
Provisional Orders Confirmation (No. 6) Act, 1912.

pursuance of subdivision (1) of this Article shall be deemed to be within the purposes for which the United District is formed.

A.D. 1912.
*Thurrock
Grays and
Tilbury
Order.*
Settlement of
differences.

Art. XXIV. The Local Government Board may by order provide for the settlement of any doubt or difference which may arise between any of the Constituent Authorities or between any or all of the Constituent Authorities and the Joint Board respecting any matter arising out of the provisions or as to the effect of this Order and on the application of any of the Constituent Authorities or of the Joint Board adjust or transfer any property or liabilities so far as the same may be affected by this Order and may by such order deal with any matter which may be dealt with by the order made under Section 304 of the Act.

Art. XXV. This Order may be cited as the *Thurrock Grays and Tilbury Joint Sewerage Order 1912.* Short title.

The SCHEDULES above referred to.

SCHEDULE A.

All that piece or parcel of land containing three acres and seventeen perches or thereabouts and situate in the Parish of Gray's Thurrock in the County of Essex to the North of the River Thames and to the East of a road called the Manor Way leading in a southerly direction from the easterly end of Argent Street which piece or parcel of land includes the abutting dykes or ditches except the two ditches to the West thereof which do not abut on the Manor Way aforesaid and abuts North on land now or lately belonging or reputed to belong to Messrs. Seabrooke & Sons Limited West partly on the said two ditches or dykes and partly on the Manor Way aforesaid South on a twenty feet occupation road leading from the Manor Way aforesaid and East on land now or lately belonging or reputed to belong to Charles Wall and now in the occupation of Charles Wall Limited together with (a) the iron pipe for the conveyance of water along the Manor Way aforesaid from the said piece or parcel of land to Argent Street aforesaid and the rights exerciseable by the Urban District Council of Grays Thurrock in connexion therewith and (b) the rights of way granted to the said Urban District Council over a road ten feet in width along the Manor Way aforesaid and over the said occupation road on which the said piece or parcel of land abuts on the South as aforesaid.

[Ch. cxxxii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1912.

A.D. 1912.

SCHEDULE B.

*Thurrock
Grays and
Tilbury
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Description.	Number.	Number.
The Urban District of Grays Thurrock.	The Urban District Council of Grays Thurrock.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	4
The Urban District of Tilbury.	The Urban District Council of Tilbury.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	3
The Rural District of Orsett: The contributory places of Little Thurrock Stifford and West Thurrock.	The Rural District Council of Orsett.	The Chairman of the District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the District Council.	1	2

Given under the Seal of Office of the Local Government Board
this Fourteenth day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.